

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
PAUL FELIX,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER ROBERT
O'NEIL (Tax ID# 950982), individually and in his official
capacity as New York City Police Officer,

Defendants.

-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 19, 2014



Ellie Silverman, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
PAUL FELIX
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No. 13-2948

TO:

THE CITY OF NEW YORK, Municipal Building • New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York 10007
POLICE OFFICER ROBERT O'NEIL (Tax ID# 950982), 7101 Parsons Blvd, Flushing,
NY 11365

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
PAUL FELIX,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER ROBERT
O'NEIL (Tax ID# 950982), individually and in his official
capacity as New York City Police Officer,

Defendants.

Index No.:
Date Purchased:

**VERIFIED
COMPLAINT**

-----X
Plaintiff **PAUL FELIX**, by his attorneys **NOVO LAW FIRM, PC**, complaining of
Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**,
and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** respectfully alleges, upon
information and belief:

PARTIES

1. Plaintiff **PAUL FELIX** was, and still is, an individual residing at 4515 Colden Street, Apt. 6M, in the County of Queens and State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **NEW YORK CITY POLICE DEPARTMENT** was, and still is, at all times relevant herein, a municipal corporation established and maintained by Defendant **THE CITY OF NEW YORK**.
4. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment

of police officers as said risk attaches to the public consumers of the services provided by Defendant **NEW YORK CITY POLICE DEPARTMENT**.

5. Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, was, and still is, at all times relevant herein, duly appointed and acting officer, servant, employee and agent of Defendant **NEW YORK CITY POLICE DEPARTMENT** a municipal agency of Defendant **THE CITY OF NEW YORK**.
6. Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** was, and still is, at all times relevant herein, acting under color of state law in the course and scope of his duties and functions as an officer, agent, servant, and employee of Defendant **THE CITY OF NEW YORK** was acting for, and on behalf of, and with the power and authority vested in him by Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties.
7. Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, was, and still is, at all times relevant herein, a male New York City Police Officer, bearing Tax ID No.: 950982, assigned to the Patrol Borough Queens South.
8. On August 20, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
9. On January 15, 2014, pursuant to General Municipal Law § 50(h), a hearing was held at the office of a designated agent.

FACTS

10. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
11. Upon information and belief, on or about May 20, 2013, at approximately 5:30 P.M., Plaintiff **PAUL FELIX** was a lawful pedestrian on the sidewalk in front of and/or near the premises located at 163-40 Jamaica Avenue, County of Queens, State of New York.
12. Upon information and belief, while Plaintiff **PAUL FELIX** was lawfully at the aforementioned location, he was approached by Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, who, without reasonable suspicion, without probable cause and without any threat or reasonable belief of unlawful activity, proceeded to unlawfully arrest and handcuff him without any indication as to what he had done wrong and/or what, if any, crime(s) he had committed.
13. Upon information and belief, Plaintiff **PAUL FELIX** was subjected to unlawful pat downs and searches by Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** and placed into a patrol vehicle awaiting transport to the 103rd precinct.
14. Upon information and belief, while in the patrol vehicle, Plaintiff **PAUL FELIX** made several complaints of the handcuffs being extremely tight and of his legs being too close to the seat in front him; he pleaded and requested for the handcuffs to be loosened and for the front seat to be moved forward, however, his requests were denied, resulting in severe wrist and hand injuries and pain which lasted for several weeks.
15. Upon information and belief, upon arrival at the precinct, Plaintiff was told by Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** to get out of the car, however, due to his legs being bent up against the front seat of the vehicle, he was not able to get out. Plaintiff pleaded with Defendant for help but was denied. Plaintiff attempted to exit the vehicle by pushing himself sideways, which resulted in Plaintiff falling out of the vehicle and violently slamming into the pavement with his right shoulder, causing severe injury to his right shoulder.

16. While in the precinct, Plaintiff **PAUL FELIX** was fingerprinted, photographed, placed in a holding cell and otherwise ignored and denied any explanation for such detention.
17. After being held for approximately two (2) hours in the 103rd precinct, Plaintiff **PAUL FELIX** was transported to Central Bookings where again, he was fingerprinted, photographed, searched, and again placed into another holding cell.
18. Upon information and belief, at no point did Plaintiff **PAUL FELIX** resist arrest or disobey the arresting officer's commands, and he was never charged with resisting arrest or any similar charge.
19. Upon information and belief, at no time was Plaintiff **PAUL FELIX** read his Miranda Rights.
20. Upon information and belief, while in custody, Plaintiff **PAUL FELIX** made several requests for medical attention, which were all denied.
21. After approximately twenty four (24) hours of being detained without probable cause, under inhumane and otherwise unsanitary conditions, Plaintiff **PAUL FELIX's** was released.
22. Upon information and belief, after two (2) mandatory court appearances, on or about September 3, 2013, Hon. Judge Hart dismissed and sealed all charges against Plaintiff **PAUL FELIX**.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY THE CITY OF NEW YORK

23. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
24. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
25. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting

through its police department, and through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendant's supervisors of the need to train, screen, supervise and discipline said Defendant. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

26. Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **PAUL FELIX** and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
27. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY THE CITY OF NEW YORK

28. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing

paragraphs with the same force and effect as though fully stated herein.

29. At all times material to this complaint, Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
30. At all times material to this complaint, Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
31. Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **NEW YORK CITY POLICE DEPARTMENT** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **PAUL FELIX** and which are officially tolerated by Defendant **NEW YORK CITY POLICE DEPARTMENT**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and

Fourteenth Amendments.

32. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)

33. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
34. By his conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff **PAUL FELIX** and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
40. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

41. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
42. By the actions described above, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**, and **POLICE OFFICER ROBERT O'NEIL (TAX**

ID# 950982), caused Plaintiff **PAUL FELIX** to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

43. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

44. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
45. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, issued legal process to place Plaintiff **PAUL FELIX**, under arrest and subject him to prosecution.
46. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, arrested and participated in prosecuting Plaintiff **PAUL FELIX**, in order to obtain collateral objectives outside the legitimate ends of the legal process.
47. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, arrested and participated in prosecuting Plaintiff **PAUL FELIX** in order to obtain the collateral objective of intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of NYPD misconduct and excessive force.

48. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, acted with intent to do harm to Plaintiff **PAUL FELIX** without excuse or justification.
49. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
DERELICTION OF DUTY, DEPRAVED INDIFFERENCE
and FAILURE TO INTERCEDE

50. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
51. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, were under a duty of safeguarding the public and ensuring the appropriate execution of the New York Police Department's role. Plaintiff **PAUL FELIX** duly relied on Defendants' fulfillment of their policing duties.
52. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, had an affirmative duty to intercede when Plaintiff **PAUL FELIX**'s constitutional rights were being violated in Defendants' presence.
53. At the time of the incident, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, were observing and aware of the wrongful acts against Plaintiff **PAUL FELIX**.
54. At the time of the incident, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX**

ID# 950982), neglected to intervene on Plaintiff **PAUL FELIX**'s behalf in dereliction of their duty to Plaintiff and in depraved indifference to Plaintiff's well-being.

55. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL** (TAX ID# 950982), violated Plaintiff **PAUL FELIX**'s constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
56. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL** (TAX ID# 950982), had an affirmative duty to intercede when Plaintiff **PAUL FELIX**'s constitutional rights were being violated in Defendants' presence by falsifying evidence of probable cause to arrest and prosecute Plaintiff.
57. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY

58. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
59. Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, are vicariously liable to Plaintiff **PAUL FELIX** for the individual Defendant **POLICE OFFICER ROBERT O'NEIL**'s (TAX ID# 950982) common tort of battery via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1) (b).
60. Defendant **POLICE OFFICER ROBERT O'NEIL** (TAX ID# 950982), committed a battery on Plaintiff **PAUL FELIX** by being handcuffed, patted down, fingerprinted and searched. The deprivation of food, water and sanitary conditions while in custody was

harmful, un-consented, and unjustified and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

61. That by reason of the battery, Plaintiff **PAUL FELIX** was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendants' actions.
62. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHT
UNDER NEW YORK STATE LAW
VIA ASSAULT

63. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
64. That on the aforementioned date, time and place, Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, committed the tort of assault against Plaintiff **PAUL FELIX** by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendant violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law
65. That Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** is vicariously liable to Plaintiff **PAUL FELIX** for the individual Defendant **POLICE OFFICER ROBERT O'NEIL's (TAX ID# 950982)**, common law tort of assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
66. That by reason of the aforesaid committed by Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**, and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, Plaintiff **PAUL FELIX** suffered and continues to suffer physical injury and that he was otherwise damaged.

67. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
NEGLIGENCE

68. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
69. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, negligently caused injuries and otherwise damaged Plaintiff **PAUL FELIX**. The acts and conduct of Defendants were the direct and proximate cause of injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
70. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS

71. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
72. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff **PAUL FELIX** that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
73. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**,

individually and collectively are liable for abuses against Plaintiff **PAUL FELIX** that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.

74. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, individually and collectively are liable for abuses against Plaintiff **PAUL FELIX** that shock the conscience in violation of New York law, rules and regulations.

75. As a result of the foregoing, Plaintiff **PAUL FELIX**, was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A ELEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION AND TRAINING

76. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.

77. At all times herein mentioned, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PAUL FELIX** a duty to manage, control, and supervise Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**.

78. Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** negligently hired, screened, retained, disciplined, supervised and trained Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**.

79. At all times herein mentioned, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PAUL FELIX** a duty to hire qualified and sufficient personnel in connection with the operation, management control, teaching at and/or supervision of Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**.

80. At all times herein mentioned, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PAUL FELIX** a duty to train their employees so as to enable them to properly maintain order and control.
81. At all times herein mentioned, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PAUL FELIX** a duty to promulgate proper and/or adequate rules and regulations governing the proper care, guidance and/or supervision to be provided and rendered by those agents, servants, officers and/or employees hired as New York City Police Officers.
82. At all times herein mentioned, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PAUL FELIX** a duty to provide a safe and proper environment.
83. At all times herein mentioned, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PAUL FELIX** a duty to prevent from being assaulted and battered while in their custody and control.
84. At all times relevant hereto, Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees were, jointly, severally and concurrently, negligent, careless and reckless in individually and collectively breaching each and every duty owed to Plaintiff **PAUL FELIX**.
85. The aforesaid occurrence was caused wholly and solely by reason of the negligence of Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees, without any fault or negligence on the part of Plaintiff **PAUL FELIX** contributing thereto.
86. Defendant **THE CITY OF NEW YORK** acting through Defendant **NEW YORK CITY POLICE DEPARTMENT** and through Defendant **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, had *defacto* to policies, practices, customs and usage, which were a direct and proximate cause of the unconstitutional conduct alleged herein.

87. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A TWELFTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

88. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
89. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)**, negligently caused emotional distress and damage to Plaintiff **PAUL FELIX**. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.
90. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL HARM

91. Plaintiff **PAUL FELIX** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
92. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** knowingly, unreasonably and maliciously sought to disturb Plaintiff **PAUL FELIX** by their individual and collective outrageous conduct.
93. This conduct includes, without being limited to, assaulting and battering Plaintiff **PAUL FELIX** while he was bound by handcuffs in their custody; unreasonably detaining him; depriving him of food, and water and subjecting him to multiple unreasonable searches and

other intimidation tactics and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

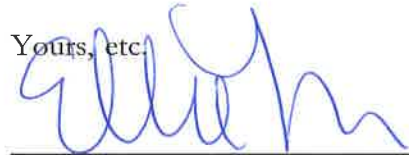
94. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** and **POLICE OFFICER ROBERT O'NEIL (TAX ID# 950982)** have caused Plaintiff **PAUL FELIX** humiliation, anxiety, fear, sleeplessness and severe distress.

95. As a result of the foregoing, Plaintiff **PAUL FELIX** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

WHEREFORE, Plaintiff **PAUL FELIX** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
May 19, 2014

Yours, etc.



Ellie A. Silverman, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
PAUL FELIX
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No. 13-2948

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **NOVO LAW FIRM, PC**, attorneys of record for Plaintiff **PAUL FELIX**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
 May 19, 2014



Ellie A. Silverman, Esq.

Index No.: _____/2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

PAUL FELIX,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and POLICE
OFFICER ROBERT O'NEIL (Tax ID# 950982), individually and in his official capacity as New York
City Police Officer,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

NOVO LAW FIRM, P.C.

Attorneys for Plaintiff

PAUL FELIX

299 Broadway, 17th Floor
New York, New York 10007
(212) 233-6686
Fax (212) 233-6687

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: May 19, 2014


Ellie A. Silverman, Esq.

TO:

THE CITY OF NEW YORK, Municipal Building • New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York 10007
POLICE OFFICER ROBERT O'NEIL (Tax ID# 950982), 7101 Parsons Blvd, Flushing,
NY 11365